

		· Second Templated Meet and Confer (reduction 3.6 hours) · Template Fee Motion (reduction 1.2 hours) Plaintiff is ordered to provide a proposed Order which takes the above reductions in rates and time into consideration and makes the calculations accordingly. Defendant has 5 days to submit any objection thereto.
110	Kerber vs. FCA US LLC 25-01471116	Motion for Attorney Fees Plaintiff Danielle Kerber (“Plaintiff”) moves for an order granting Plaintiff attorney fees against defendant FCA US LLC (“Defendant”) in the amount of \$19,772.50 plus \$972.01 in costs. To determine the appropriate fee award under Civil Code section 1794, the Court applies the lodestar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) Defendant does not challenge the requested costs. As to the lodestar for attorney’s fees, Defendant argues that the number of hours expended by Plaintiff’s counsel on certain tasks is excessive. The Court agrees that certain entries reflect an excessive number of hours spent for the related tasks and that the hours should accordingly be reduced as follows: · 1.3 hours by Mr. Urner on 3/27/25 for reviewing file and documents and analyzing legal claims in preparation for drafting the complaint is excessive and unreasonable in this straightforward SBA action and should be reduced to 0.5 hours (a total reduction of \$420.00); · 2.3 hours by Mr. Acosta on 4/5/25 for researching recalls and technical service bulletins is excessive and

		unreasonable and should be reduced to 1.0 hours (a total reduction of \$585.00); and · 2.2 hours by Mr. Acosta on 6/21/25 for reviewing Defendant's initial disclosure document production is excessive and unreasonable and should be reduced to 1.5 hours (a total reduction of \$315.00). The above items equal a total of \$1,320.00 in reductions from the requested lodestar. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the remaining number of hours and counsel's hourly rates to be reasonable. In light of the above, the Motion for Attorney Fees is GRANTED in the total amount of \$18,452.50 in fees and \$972.01 in costs. Plaintiff to give notice
111	Bian vs. Latreill 24-01390510	Motion for Summary Judgment and/or Adjudication Defendant Rene Francis ("Ray") LaTreill ("LaTreill") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Wenqiang ("Wayne") Bian's ("Bian") First Amended Complaint ("FAC"). For the reasons set forth below, the motion is DENIED. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie